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Case Number: 25STCV22782 Hearing Date: June 23, 2026 Dept: 408

Defendants 15175 Whittier, LLC, Rodney

Rivani, and RJR Fulton, LLC's Demurrer to Plaintiff Chris Ekkelboom's Second

Amended Complaint is OVERRULED, in part, as to the second cause of action and SUSTAINED,

in part, as to the fifth cause of action.

I.

BACKGROUND

On August 1, 2025, Plaintiff Chris Ekkelboom ("Ekkelboom")

filed a complaint against Defendants 15175 Whittier LLC ("15175"), Rodney

Rivani ("Rivani"), RJR

Realty, LLC ("RJR"), RJR Fulton, LLC ("RJR Fulton"), Rivani

Investments LLC ("Rivani LLC"), Triple RRR Centers, LLC ("RRR"), Boulder Major,

LLC ("Boulder"), and Synergy Studios, LLC ("Synergy", collectively "Defendants")

alleging causes of action for:

1.

Foreclosure of Mechanic's Lien;

2.

False Promise (Promissory Fraud);

3.

Breach of Contract;

4.

Work, Labor, and Services Rendered; and

5.

Civil Recovery of Stolen Property Received.

On October 8, 2025, pursuant to Ekkelboom's request, RJR was dismissed without prejudice.

On October 30, 2025, pursuant to Ekkelboom's request, default was entered against RRR, Synergy,

Rivani, and Rivani LLC.

On November 6, 2025, pursuant to Ekkelboom's request, default was entered against Boulder.

On November 26, 2025, Ekkelboom filed a First Amended Complaint ("FAC").

On March 26, 2026, the court overruled in part 15175, Rivani, and RJR Fulton's ("Moving Defendants") Demurrer to Ekkelboom's FAC as to the first, third, and fourth causes of

action, and sustained in part with leave to amend as to the second and fifth

causes of action.

On April 14, 2026, Ekkelboom filed a Second Amended Complaint ("SAC").

On May 18, 2026, Moving Defendants filed this Demurrer to Ekkelboom's

SAC. On June 2, 2026, Ekkelboom filed an opposition. On June 8, 2026, Moving

Defendants filed a reply.

On June 11, 2026, 15175 filed a cross-complaint against Ekkelboom alleging causes of action for:

1.

Breach

of Contract;

2.

Breach

of The Implied Covenant of Good Faith and Fair Dealing;

3.

Breach

of Express Warranty;

4.

Breach

of Implied Warranty;

5.

Negligence

(Construction Defect);

6.

Negligent

Supervision;

7.

Violation

of Business & Professions Code §7031(B); and

8.

Violation

of Business & Professions Code §17200.

II.

LEGAL STANDARD

“The

party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of” various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts

read the allegations liberally and in context. In a

demurrer proceeding, the defects must be apparent on the face of the pleading

or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.*

(2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone,

and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants,*

Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes

the truth of the complaint’s properly pled or implied factual allegations. (*Ibid.*)

The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147

Cal.App.4th 740, 747.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a

reasonable possibility of successful amendment. (Goodman v. Kennedy

(1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court

that a pleading can be amended successfully. (Id.; Lewis v. YouTube,

LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any

reasonable possibility that the plaintiff can state a good cause of action, it

is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada

Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

III.

DISCUSSION

Moving Defendants demur to the second and fifth causes of action alleged

in Ekkelboom’s SAC pursuant to Code of Civil Procedure section 430.10,

subdivision (e) and (f), on the grounds that Ekkelboom fails to state

sufficient facts to constitute such causes of action and it is uncertain.

A.

Second Cause of

Action – False Promise (Promissory Fraud)

“Promissory fraud is a subspecies of the action for fraud and deceit. A

promise to do something necessarily implies the intention to perform; hence,

where a promise is made without such intention, there is an implied

misrepresentation of fact that may be actionable fraud. The elements of

promissory fraud (i.e., of fraud or deceit based on a promise made without any

intention of performing it) are: (1) a promise made regarding a material fact

without any intention of performing it; (2) the existence of the intent not to

perform at the time the promise was made; (3) intent to deceive or induce the

promisee to enter into a transaction; (4) reasonable reliance by the promisee;

(5) nonperformance by the party making the promise; and (6) resulting damage to

the promise.” (Behnke v. State Farm General Insurance Co. (2011) 196

Cal.App.4th 1443, 1453 [citation and quotation marks omitted].)

The facts constituting the alleged fraud must be alleged factually and

specifically as to every element of fraud, as the policy of “liberal

construction” of the pleadings will not ordinarily be invoked. (Lazar v.

Superior Court (1996) 12 Cal.4th 631, 645.) To properly allege fraud

against a corporation, the plaintiffs must plead the names of the persons

allegedly making the false representations, their authority to speak, to whom

they spoke, what they said or wrote, and when it was said or written. (Tarmann

v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

The SAC alleges

that 15175 and Rivani ("Owner Defendants") entered into an agreement with Ekkelboom to

make certain improvements to the real property located at 15175 Whittier Blvd.,

Whittier, CA 90603 ("Subject Property"). (SAC, ¶¶ 7-9.) Pursuant to the

contract, Ekkelboom made the improvements on the Subject

Property. (Ibid.) However, Owner Defendants failed to pay Ekkelboom

the sum of \$181,175.67 for the work performed (Id., ¶ 10.)

In support of the

second cause of action, the SAC alleges that

during negotiations for the improvements contract and throughout performance of

the work at the Subject Property, Rivani promised that Owner Defendants would

pay Ekkelboom for the labor on the

Subject Property performed under the contract; that Owner Defendants would

timely fund approved additional work; and that Owner Defendants would not

withhold payment except for legitimate, third-party verified defects. (Id.,

¶ 24.) The SAC alleges that at the time these promises were made, Owner

Defendants had no intention of performing and made them to induce Ekkelboom into the contract. (Ibid.) Such intent was evidence by

Owner Defendants' pattern and practice of nonpayment to contractors and

subcontractors for the Subject Property, including failing to disclose that a prior contractor previously left the project due to nonpayment; failing to make any payments to Ekkelboom for construction supervision and construction overhead and profit; informing the concrete subcontractor that Owner Defendants had no intention of paying Ekkelboom fully for its work on the project; an employee of Owner Defendants advising Ekkelboom to be careful of Rivani as he would find ways to not pay; and refusing to pay subcontractors for completed work unless they performed additional work outside the agreed scope without additional compensation. (Id., ¶ 25.) Ekkelboom incurred damages as a result of relying on such promises. (Id.)

Moving Defendants argue that Ekkelboom fails to allege a promissory fraud claim as the SAC does not demonstrate that any false promises were made prior to entering into the contract.

(Demurrer, at pp. 6-7.) Moving Defendants further contend that the allegations presented regarding the alleged fraudulent conduct occurred after the parties entered into the contract and did not induce Ekkelboom to enter the contract. (Id., at pp. 7-8.) Moving Defendants also argue that second cause of action is duplicative of the breach of contract cause of action. (Id., at pp. 8-9.)

The court finds that Ekkelboom sufficiently allege a promissory fraud cause of action. The SAC specifically alleges that Rivani made promises to allegedly induce Ekkelboom into the contract through omission of material information; that Ekkelboom relied on such promises to enter into the agreement; that Owner Defendants did not intend to

perform such promises at the time such statements were made; that Owner

Defendants had a practice of non-payment; and that the nonperformance resulted

in damages. The court finds that such additional allegations support more than

a breach of contract claim.

Accordingly, the demurrer is overruled as to the second cause of action.

B.

Fifth Cause of Action

– Civil Recovery of Stolen Property Received

“[T]he elements required to show a violation of [Penal Code] section

496(a) are simply that (1) property was stolen or obtained in a manner

constituting theft, (ii) the defendant knew the property was so stolen or

obtained, and (iii) the defendant received or had possession of the stolen

property.” (Switzer v. Wood (2019) 35 Cal.App.5th 116, 126.)

Penal Code section 484 defines “theft” to include the knowing and designed

obtaining of money, real, or personal property by false or fraudulent

representation or pretense. (Pen. Code, § 484, subd. (a).)

“A theft conviction on the theory of false pretenses requires proof that

(1) the defendant made a false pretense or representation to the owner of

property; (2) with the intent to defraud the owner of that property; and (3)

the owner transferred the property to the defendant in reliance on the

representation.” (People v. Wooten (1996) 44 Cal.App.4th 1834, 1841.)

“To prove theft, a plaintiff must establish criminal intent on the part of the

defendant beyond “mere proof of nonperformance or actual falsity.” (Siry

Investment, L.P. v. Farkhondehpour (2022) 13 Cal.5th 333, 361-362 [finding

defendants did not act “innocently or inadvertently, but with careful planning

and deliberation reflecting the requisite criminal intent.”].)

In support of the fifth cause of action, the SAC alleges that Owner

Defendants obtained Ekkelboom’s improvements to the Subject Property,

including equipment and stucco and concrete materials, in a manner constituting

theft. (SAC, ¶ 46.) The SAC alleges the same conduct provided in support of the

promissory fraud cause of action to

establish Owner Defendants’ purported deliberate scheme of theft. (Id.,

¶ 47.)

Moving Defendants argue that Ekkelboom fails to allege a claim for stolen property received as it fails to

demonstrate a criminal intent beyond mere proof of nonperformance or

actual falsity. (Demurrer, at pp. 10-11.)

The court finds that the SAC fails to allege sufficient facts to support a

claim under Penal Code section 496. Ekkelboom had to establish Defendants’ criminal intent beyond the conduct which

allegedly defrauded Ekkelboom to enter into a

contract. Such additional allegations do not support the requisite criminal

intent of “careful planning and deliberation” as required by *Siry*

Investment, L.P., despite the court finding that the allegations support

the fraud claim.

Accordingly, the demurrer is sustained as to the fifth cause of action.

IV.

CONCLUSION

Defendants 15175

Whittier, LLC, Rodney Rivani, and RJR Fulton, LLC's Demurrer to Plaintiff Chris

Ekkelboom's Second Amended Complaint is **OVERRULED**, in part, as to the second

cause of action and **SUSTAINED**, in part, as to the fifth cause of action.